

TENTATIVE RULING

Case: **Hotel Winters, LLC v. Zhou**
Case No. CV-2023-1836

Hearing Date: **January 16, 2026** **Department Eight** **1:30 p.m.**

Defendant's renewed motion to compel further discovery responses is **DENIED**. (Code Civ. Proc., §§ 2030.300, 2031.310, 2033.290.) Defendant filed this motion more than 45 days after plaintiff Hotel Winters, LLC served its verified responses to the discovery requests identified in defendant's motion. (Zhou decl., ¶¶ 1-3 & 9; Mehta decl., ¶ 5.) As this 45-day deadline has expired, the Court lacks jurisdiction to rule on this motion to compel. (Code Civ. Proc., §§ 2030.300, subd. (c), 2031.310, subd. (c), 2033.290, subd. (c); see *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409-1410.)

Defendant's requests for issue and monetary sanctions are **DENIED**. (Code Civ. Proc., §§ 2023.010, 2023.030, 2030.300, 2031.310, 2033.290.) Plaintiff did not unsuccessfully oppose defendant's motion. (Code Civ. Proc., §§ 2030.300, 2031.310, 2033.290.) Further, as the Court lacks jurisdiction to rule defendant's motion, the Court does not consider whether plaintiff engaged in the misuse of the discovery process. (Code Civ. Proc., §§ 2023.010, 2023.030.)

Plaintiff's request for sanctions is **DENIED**. (Code Civ. Proc., §§ 2023.010, 2023.020.) As the Court lacks jurisdiction to rule defendant's motion, the Court does not consider whether defendant failed to meet and confer in good faith or defendant misused the discovery process through her numerous communications and conditional demands. (Code Civ. Proc., §§ 2023.010, subds. (d), (f), & (g), 2023.020; Opposition, pp. 9-10.) To the extent that plaintiff seeks sanctions under sections 2030.300(d), 2031.310(h), and 2033.290(d), the Court finds that the circumstances make the imposition of sanctions – under these authorities – unjust. Specifically, plaintiff only makes a passing reference to requesting monetary sanctions under these sections. (See Opposition, p. 10.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
 Case No. CV-2022-1963

Hearing Date: **January 16, 2026** **Department Eight** **9:00 a.m.**

On the Court’s own motion, defendant Ashok Patel’s motion for a protective order is **CONTINUED** to January 16, 2026, **at 1:30 p.m.** in Department Eight.

Defendant’s motion for a protective order is **GRANTED**. (Code Civ. Proc., §§ 2019.020, subd. (b), 2030.090.) The Court finds that, in the interest of judicial economy, the parties should not engage in the discovery process until the pleadings are settled. (Code Civ. Proc., § 2019.020, subd. (b); Dean decl., ¶¶ 24-29; Mehta decl., ¶¶ 3-4 & 8-9; Murray decl., ¶¶ 4-9.) Therefore, all discovery is **STAYED** until defendants Ashok Patel, Michael Olivas, David Fischbach, and Ken Patel are required to answer plaintiff’s complaint or further order by this Court.

Defendant’s request for sanctions is **DENIED**. (Code Civ. Proc., § 2030.090, subd. (d).) Defendant did not cite legal authority to support his request for monetary sanctions. (Dean decl., ¶¶ 30-34; see *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73-74.) Further, defendant’s notice of motion did not “identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought.” (Code Civ. Proc., § 2023.040.)

Plaintiff’s request for sanctions is **DENIED**. (Code Civ. Proc., § 2030.090, subd. (d).) Defendant did not unsuccessfully make this motion for a protective order. (*Ibid.*)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.